

		However, at this stage the court will allow leave to amend consistent with the liberal policy in favor of amendment. Plaintiff is ORDERED to file and serve the amended complaint within 5 days. Clerk to give notice.
3	Oh vs. Chen 30-2025- 01521231-CU- CL-CJC	Motion to Dissolve and Vacate Right to Attach Order and Writ of Attachment Defendant, Binbing Chen's motion to dissolve and vacate right to attach order and writ of attachment is OFF CALENDAR. Defendant is currently defaulted and cannot take affirmative steps in the litigation until default has been set aside. (See <i>Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.</i> (1984) 155 Cal.App.3d 381, 385.) Clerk to give notice.
4	Lopez vs. Kia America, Inc. 30-2025- 01456189-CU- BC-CJC	Motion for Judgment on the Pleadings Defendant Kia America, Inc.'s (Kia) Motion for Judgment on the Pleadings is GRANTED with 10 days leave to amend. <u>Second cause of action for implied warranty</u> Kia moves for judgment on the pleadings as to Plaintiff's second cause of action for breach of the implied warranty of merchantability on the ground it is time-barred. "The statute of limitations for breaches of the implied warranty of merchantability is four years." (<i>Montoya v. Ford Motor Co.</i> (2020) 46 Cal.App.5th 493, 495 [citation omitted].) The Song-Beverly Act provides the duration of the implied warranty of merchantability may extend to a period of not more than one year after purchase when accompanied by an express warranty of future performance spanning one year or longer. (Civ. Code, § 1791.1, subd. (c).) A claim for breach of implied warranty is not barred by the consumer's failure to report the defect within one year, as "[t]he implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1305.) "There is nothing that suggests a requirement that the purchaser discover and report to the